

~~April 23, 2020~~
April 24, 2020

Maria Pereira
Direct Phone (973) 514-5115
Maria.pereira@maersk.com

VIA E-MAIL

Mr. Gary Kardian
Director, Office of Service Contracts & Tariffs
Federal Maritime Commission
Room 940
800 North Capitol Street, N.W.
Washington, D.C. 20573

Re: **URGENT -- REQUEST FOR SPECIAL PERMISSION --**
Maersk A/S, Org. No. 025360

Dear Mr. Kardian:

Pursuant to 46 C.F.R. §520.14, Maersk A/S (“Maersk”) respectfully requests permission to deviate from 46 C.F.R. §520.8(a) and to increase the Emergency Risk Surcharge “ERS” published in its tariff MAEU-OT-7694742 and SAFM-OT-7727571 to April 6th, 2020. The reasons supporting this request are set forth below.

Maersk tariffs MAEU-OT-7694742 and SAFM-OT-7727571 cover the trade from North America to Middle East and South Asia. Prior to April 6, 2020, both tariffs contained an Emergency Risk Surcharge in the amounts mentioned below on below table:

Charge Code	Origin/POL	Destination/POD
ERS	United States, Guam	Aden, YE
ERS	United States, Guam	Bahrain, Iraq, Kuwait, Oman, United Arab Emirates, Qatar, Dammam, SA, Al Jubayl, SA
ERS	East coast of North America(US ports)	Bangladesh, India, Maldives, Sri Lanka
ERS	United States, Guam	Hodeidah, YE
ERS	United States, Guam	Iran
ERS	United States	Jeddah, SA, Yanbu, SA, Rabigh, SA, King Abdullah Port, SA & Jordan
ERS	West coast of North America(US ports)	Pakistan
ERS	East coast of North America(US ports)	Pakistan
ERS	Guam	Afghanistan
ERS	Guam	Bangladesh, Maldives, India, Nepal, Sri Lanka
ERS	Guam	Pakistan
ERS	Guam	Pakistan
ERS	Guam	Pakistan

While carrying out some tariff maintenance activities instructed by the Surcharge Owners at Maersk, the tariff personnel inadvertently reduced the ERS amount to \$0 on April 6th with an effective date of February 15th, 2020 and an expiration date of April 30, 2020. The changes in the ERS for the date range of February 15th through April 6th is disregarded as invalid because under the Shipping Act a carrier cannot change a tariff rate retroactively.

As a result of the abovementioned inadvertent error, Maersk has an incorrect and obviously non-compensatory ERS surcharge level published in its tariffs from April 6th until May 1st. Further, shippers would expect that the ERS would be in place during this period so there would be no adverse impact on shippers by granting this special permission.

Considering the foregoing, Maersk hereby requests special permission to deviate from 46 C.F.R. §520.8(a) and to disregard this inadvertent error so that the ERS is deemed to remain in effect from April 6th, 2020 going forward. Clerical errors of the type described above constitute good cause for the exercise of special permission authority. 46 C.F.R. §520.14(b).

Confirmation, of two separate payments in the amount of \$313 each covering the filing fees for this request, is enclosed.

Due to the COVID-19 unfortunate situation, I'm currently working from home with no access to a scanner. For this reason, I'm unable to scan and number the exhibits attached to support this petition.

Should you have any questions regarding the foregoing, please do not hesitate to contact the undersigned.

Sincerely,

Maria Pereira

By: Maria Pereira
Maersk representative

From: [Subash Murugesan](#)
To: [Maria Pereira](#)
Subject: ERS Special permission request
Date: Thursday, April 23, 2020 10:25:12 AM
Attachments: [ERS Special Permission.msg](#)

Hi Maria,

WRITTEN STATEMENT OF SUBASH MURUGESAN

I am the Team leader, Tariff Maintenance For Maersk A/S. My department is currently responsible for maintaining the Tariff charges for the US trades for the Maersk container shipping business (i.e Maersk and Safmarine).

In April 2020, my department was working on modifying Emergency Risk Charges (ERS) in the Maersk tariff for several trade lanes. As a result of restructuring the rate levels of ERS for different countries, the ERS for North America to Middle East and South Asia for Dry, Reefer, OOG and Hazardous cargo was set as Zero with effective from 15th February. This was a clerical error and the intent was that the ERS levels as shown below would be maintained. A Tariff rate lookup for the ERS between the dates of April 6 and April 30 show the ERS as zero. The ERS is restored for May 1 because this incorrect filing had an expiration date of April 20.

ERS Rate levels:

Origin/POL	Destination/POD	Currency	Charge	Container Size Type
United States, Guam	Aden, YE	USD	530/1060/1060	20/40/45
United States, Guam	Bahrain, Iraq, Kuwait, Oman, United Arab Emirates, Qatar, Dammam, SA, Al Jubayl, SA	USD	100/200/200	20/40/45
East coast of North America(US ports)	Bangladesh, India, Maldives, Sri lanka	USD	35/70/70	20/40/45
United States, Guam	Hodeidah, YE	USD	930/1860/1860	20/40/45
United States, Guam	Iran	EUR	95/185/185	20/40/45
United States	Jeddah, SA, Yanbu, SA, Rabigh, SA, King Abdullah Port, SA & Jordan	USD	75/150/150	20/40/45
West coast of North America(US ports)	Pakistan	USD	65/130/130	20/40/45
East coast of North America(US ports)	Pakistan	USD	100/200/200	20/40/45
Guam	Afghanistan	USD	100/200/200	20/40/45
Guam	Bangladesh, Maldives, India, Nepal, Sri Lanka	USD	20/40/40	20/40/45
Guam	Pakistan	USD	110	40/45
Guam	Pakistan	USD	90	20REEF
Guam	Pakistan	USD	55	20DRY

This 23rd day of April 2020.

Please accept this email as confirmation that the attached details are accurate. I'm unable to sign because I'm working from home without access to a fax or scanner.

Kindly check and do the needful.

Regards,
Subash.

Classification: Internal

From: [Deejan Kumarran](#)
To: [Maria Pereira](#)
Cc: [Subash Murugesan](#); [Perumal Raj P](#)
Subject: ERS Special Permission
Date: Thursday, April 23, 2020 10:23:03 AM
Attachments: [Rate lookup New.docx](#)

Hi Maria,

Good day!!

- We erroneously updated the ERS tariff as ZERO on April 6th with effective Feb 15th to April 30th (Retro-actively). It is purely a clerical error and hence would request you to seek special permission from April 6th to April 30th.

Tariff #'s impacted:

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Trade	Rate sheets	
NAM to MESA	MAEU-OT-7694742	SAFM-OT-7727571

- Have attached the ML.com rate lookup for your review.
- **Equipment size / type impacted:** All 20 / All 40 (DRY and REEFER containers) and 45H DRY.
- **Customer Advisory:** We haven't published customer advisory for these changes.

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Kindly let us know if you still anything needed from our end.

Thanks & Regards!!

Deejan R

Rules and Tariff Management

Maersk Global Service Centre Chennai– India

Email: deejan.kumarran.r@maersk.com

Thanks & Regards!!

Deejan R

Rules and Tariff Management

Maersk Global Service Centre Chennai– India

Email: deejan.kumarran.r@maersk.com